

FEDERAL ROAD SAFETY COMMISSION

(ESTABLISHMENT) ACT 2007

ACT No. 22

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Federal Republic of Nigeria

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DOCUMENT PURPOSE

This Act repeals the Federal Road Safety Commission Act, Cap. 141 LFN, 1990 (as amended) to establish the Federal Road Safety Commission with responsibility for traffic management, preventing and minimizing accidents on highways, supervision of highway users, regulation of traffic, clearing obstructions, and educating drivers, motorists and the public on proper highway use and safety matters.

PART I

ESTABLISHMENT, FUNCTIONS AND POWERS OF THE FEDERAL ROAD SAFETY COMMISSION

Section 1: Establishment and Composition

There is established for Nigeria a Federal Road Safety Commission (the Commission) which shall be a body corporate with perpetual succession and a common seal, and may sue and be sued in its corporate name.

Composition:

- A Chairman and five other persons appointed by the President on part-time basis
- The Corps Marshal who shall be the Chief Executive of the Corps

Section 2: Tenure of Office

Members of the Commission (other than ex-officio members) shall hold office for four years. Members may resign by writing to the President, and the President may remove any member if deemed in the interest of the Commission or nation.

Section 3: Responsibilities of the Commission

The Commission shall be charged with:

- Policy making
- Appointing suitable persons as Deputy Corps Marshals, Assistant Corps Marshals, Corps Commanders, and other ranks

Section 4: Delegation of Powers

The Commission may, subject to such conditions as it thinks fit, delegate any of its powers to its members, the Corps Marshal, or any member of the Corps.

Section 5: Power to Make Regulations

The Commission may make regulations for:

- Ranks, hours of duty and leave of Corps members
- Procedure and terms of appointment of Corps members
- Qualifications and promotion procedures
- Maintenance of discipline among Corps members
- Establishment, investigation and certification of driving schools
- Designing and production of driver's licenses and vehicle number plates
- Registration, licensing, and road worthiness of vehicles
- Driver's licenses and use of expressways
- Vehicle highway codes and safety factors
- Establishment of roadside clinics for accident victims
- Establishment and regulation of ambulance services
- Speed limits for motor vehicles
- Construction of motor vehicles and trailers
- Supervision of highway users
- Restriction or exclusion of vehicle types
- Highway use by animals
- Traffic flow and parking regulations
- Implementation of State and FCT highway regulations
- Regulation of fines (with National Assembly approval)
- Road safety matters generally

Section 6: Presidential Directives

The President may give directives to the Commission relating to its functions and policy. The Commission shall comply with such directives and furnish the President with information and returns as required.

Section 7: Appointment of Corps Marshal

The Corps Marshal shall be appointed by the President and must possess sound knowledge in organization and administration of road traffic and safety matters. The Corps Marshal is the Chief Executive and is exclusively responsible for executing Commission policies and day-to-day Corps activities.

Duties include:

- Exercising general supervision over Corps members and staff
- Directing activities of Corps members and Commission staff
- Managing the Commission's financial affairs
- Deploying human and material resources
- Appointing Marshals and other servants/agents

Section 8: Funds and Resources

The Commission's funds shall consist of:

- Budgetary allocations, trust funds, subventions, grants-in-aid and loans from Federal Government
- Sums or property from other governments, non-governmental bodies or individuals
- Other monies by way of gifts, grants-in-aid and testamentary disposition

All monies received shall be receipted and paid into the Government Treasury within 24 hours of receipt or the next working day.

Section 9: Accounts and Application of Funds

The Commission shall keep proper accounts conforming to accepted commercial standards and submit accounts annually for auditing by a qualified auditor from the Auditor-General's list.

Funds may be applied to:

- General administration
- Payment of salaries, allowances and benefits
- Committee expenses
- Acquiring and maintaining property
- Staff welfare and carrying into effect provisions of the Act

PART II

ESTABLISHMENT, FUNCTIONS AND RANK OF MEMBERS OF ROAD SAFETY CORPS

Section 10: Establishment and Functions of the Corps

There is established the Federal Road Safety Corps consisting of uniformed and non-uniformed members as determined by the Commission.

General Functions:

- Make highways safe for motorists and road users
- Recommend works and devices to eliminate/minimize accidents
- Educate motorists and public on highway discipline

Specific Responsibilities:

- Preventing or minimizing highway accidents
- Clearing obstructions on highways
- Educating drivers, motorists and public on proper highway use
- Designing and producing driver's licenses
- Determining requirements for driver's license applications
- Designing and producing vehicle number plates
- Standardizing highway traffic code
- Giving prompt attention to accident victims
- Conducting research into accident causes and prevention
- Determining and enforcing speed limits
- Regulating use of sirens, flashers and beacon lights
- Providing roadside and mobile clinics (free treatment)
- Regulating mobile phone use by motorists
- Regulating seat-belts and safety devices
- Regulating motorcycle use on highways
- Maintaining validity period for driver's licenses (3 years, renewable)

Section 10(4): Traffic Offences - Arrest and Prosecution Powers

Corps members have power to arrest and prosecute persons suspected of committing traffic offences including:

- Obstructing highway with vehicle or object
- Exceeding prescribed speed
- Wrongful overtaking
- Failing to obey traffic lights, signs or markings
- Driving without breakdown warning devices
- Being on road without required lights, signs or reflectors
- Contravening route, road use or safety regulations
- Being on road without valid vehicle license or identification
- Driving without valid license or required permit
- Reckless, negligent or dangerous driving
- Driving under influence of drugs or alcohol
- Operating vehicle with forged documents
- Unauthorized removal/tampering with road warning signs
- Creating road hazard without warning signs
- Removing vehicle marked 'DO NOT MOVE'
- Failing to observe construction area speed limits
- Slow vehicles failing to move to shoulder when holding up traffic
- Failure to cover unstable materials (gravel, etc.) with tarpaulin
- Failure to display number plates
- Carrying excess passengers or load
- Inadequate warning signs at construction areas
- Driving without spare tyre or with worn tyres
- Driving without windscreen or with shattered windscreen
- Driving with projecting load without red flag warning
- Driving under age 18
- Hospital/medical personnel rejecting accident victims
- Assaulting Corps member on duty
- Failure to reclaim detained vehicle after 24 hours
- Driving without required fire extinguisher
- Driving commercial vehicle without passenger manifest
- Not wearing seat belt while driving

- Making/receiving calls while driving
- Failure to report road accident
- Being a compulsive/wanted/violent traffic offender
- Riding motorcycle without properly fastened crash helmet
- Using vehicle for purposes other than licensed

Section 10(5): Powers of Corps Members

Corps members shall have power to:

- Arrest suspected offenders
- Remove and detain illegally parked vehicles (N200 per day custody fee)
- Endorse driving licenses after conviction
- Seize driver's license and vehicle documents when necessary
- Impound suspected stolen vehicles
- Tow and park impounded vehicles
- Declare offenders as wanted for failure to appear
- Impound vehicles used in committing offences
- Arrest and prosecute persons offering bribes

Vehicles not reclaimed within six months may be forfeited by High Court order and sold at public auction with proceeds deposited to Government Treasury.

Section 10(7-11): Prosecution and Penalties

Offenders may be prosecuted in Magistrate Courts in FCT Abuja or the State where offence occurred. Chief Judges may establish Special or Mobile Courts for speedy trials. Courts may impose up to six months imprisonment in lieu of prescribed penalties.

General penalty where no special penalty provided: N2,000 fine or 3 months imprisonment for default.

Section 11: Rank of Members

Members shall bear the following ranks in order:

- Deputy Corps Marshal (DCM)
- Assistant Corps Marshal (ACM)
- Corps Commander (CC)
- Deputy Corps Commander (DCC)
- Assistant Corps Commander (ACC)
- Chief Route Commander (CRC)
- Superintendent Route Commander (SRC)
- Route Commander (RC)
- Deputy Route Commander (DRC)
- Assistant Route Commander (ARC)
- Chief Road Marshal (CRM)
- Deputy Chief Road Marshal (DCRM)
- Assistant Chief Road Marshal (ACRM)
- Principal Road Marshal (PRM)
- Senior Road Marshal (SRM)
- Road Marshal I (RMI)
- Road Marshal II (RMII)
- Chief Road Marshal Assistant (CRMA)
- Senior Road Marshal Assistant (SRMA)
- Road Marshal Assistant I (RMA I)
- Road Marshal Assistant II (RMA II)
- Road Marshal Assistant III (RMA III)

Section 13: Declaration of Interest

Before appointment, members must declare any interest in transport businesses or equipment manufacturing/sales. Acquired interests must be reported within one month.

Section 14: Provision of Equipment

The Commission shall provide uniforms, identification cards, night-reflective garments, raincoats, motorcycles, cars, ambulances, recovery vehicles, torches, two-way radios, telephones and other necessary communication gadgets.

Section 15: Jurisdiction and Operational Zone

The Corps operations shall cover all public highways.

Section 16: Pre-action Notice, Obstruction and Assault

No suit shall commence against the Commission without one month written notice clearly stating cause of action, claim particulars, plaintiff details and relief sought.

Penalties:

- Obstructing Corps member on duty: N2,000 fine or 6 months imprisonment
- Assaulting Corps member on duty: N10,000 fine or 6 months imprisonment

Section 17: Public Service Status

Service by Corps members is deemed Public Service of the Federation under the Constitution. The Commission may require members to undergo training at designated institutions.

Section 18: Service Numbers

Every member shall have a service number displayed on uniform shoulder flap or conspicuous part. Uniformed members must wear uniform on duty, except Legal, Medical, Paramedic and Intelligence Officers who may wear professional outfits as required.

Section 19: Special Powers

Members exposed to high risk in enforcement shall have the same powers, authorities and privileges as Nigeria Police, including power to bear arms.

PART III

OFFENCES AND MISCELLANEOUS PROVISIONS

Section 20: Causing Death by Dangerous/Reckless Driving

Penalty: Up to 7 years imprisonment

Section 21: Dangerous Driving on Highway

Penalty: N50,000 fine or up to 2 years imprisonment or both

Section 22: Driving Under Influence of Alcohol/Drugs

Driving with alcohol above 0.5 grammes per litre or while incapable of proper control. Penalty: N5,000 fine or up to 2 years imprisonment or both

Section 23: Driving Without Valid License

Penalty: N10,000 fine

Section 24: Possession of Forged License/Documents

Penalty: N20,000 fine

Section 25: Failure to Report Accidents

Driver must immediately or as soon as practicable report to nearest FRSC office or Police station. Penalty: N20,000 fine

Section 26: Overloading

Penalty: N10,000 fine

Section 27: General Penalty Provision

Where no penalty is prescribed: First offence - N3,000 fine or 12 months imprisonment or both. Second/subsequent offence - 18 months imprisonment (no fine option unless court deems

appropriate).

Section 28: Power to Retain License/Documents

Corps members may demand and retain driving license/vehicle documents to secure fine payment or court appearance. A notice of offence sheet shall be issued indicating seizure and reclaim location.

Section 29: Repeal

This Act repeals the Federal Road Safety Commission Act CAP 141 LFN 1990 and Act No. 35, 1992. The National Road Traffic Regulations 2004 remain in force until new regulations are made.

Section 30: Interpretation

Key definitions:

- **Commission:** Federal Road Safety Commission
- **Corps:** Federal Road Safety Corps
- **Dangerous driving:** Driving in risky, hazardous, perilous, careless, negligent, unsafe manner
- **Federation:** Federal Republic of Nigeria
- **Management:** Corps Marshal, Chief Executive, Heads of Departments and Officers
- **Public Road:** Federal, State or any road used by commuters

Section 31: Short Title

This Act may be cited as the Federal Road Safety Commission (Establishment) Act, 2007.

SCHEDULES

FIRST SCHEDULE: Proceedings of the Commission

- Commission may make standing orders for proceedings
- Quorum: 4 members including Chairman
- When Chairman absent: Corps Marshal performs functions or appointed member presides
- Chairman must summon meeting within 21 days if requested by 3+ members
- Commission may co-opt persons for advice (no voting rights)
- Commission may appoint committees (up to 1/3 non-members)
- Commission seal authenticated by Chairman or authorized officer

SECOND SCHEDULE: Penalties for Offences

No.	Offence	Penalty (Naira)
1	Light or sign violation	2,000
2	Road obstruction	3,000
3	Route violation	5,000
4	Speed limit violation	3,000
5	Vehicle licence violation	3,000
6	Vehicle number plate violation	3,000
7	Driver's licence violation	10,000
8	Wrongful overtaking	3,000
9	Road marking violation	5,000
10	Caution sign violation	3,000
11	Dangerous driving	50,000
12	Driving under alcohol/drug influence	5,000
13	Operating vehicle with forged documents	20,000
14	Unauthorized removal/tampering with road signs	5,000
15	"Do Not Move" violation	2,000
16	Inadequate construction warning	50,000
17	Construction area speed limit violation	3,000
18	Failure to move over	3,000
19	Failure to cover unstable materials	5,000

20	Overloading	10,000
21	Driving with worn tyres/without spare	3,000
22	Driving without/with shattered windscreen	2,000
23	Failure to fix red flag on projected load	3,000
24	Failure to report accident	20,000
25	Medical/Hospital rejection of accident victim	50,000
26	Assaulting Marshal on duty	10,000
27	Obstructing Marshal on duty	2,000
28	Attempting to corrupt Marshal	10,000
29	Custody fee	200 per day after 24hrs
30	Driving without fire extinguisher	3,000
31	Driving commercial vehicle without manifest	10,000
32	Driving without seat belt	2,000
33	Use of phone while driving	4,000
34	Driving under 18 years	2,000
35	Riding motorcycle without crash helmet	2,000
36	Excessive smoke emission	5,000
37	Mechanically deficient vehicle	5,000

CERTIFICATION

Certified by Nasiru Ibrahim Arab, Clerk to the National Assembly, 24th June, 2007

Assented to by Chief Olusegun Obasanjo, CFR, President of the Federal Republic of Nigeria, 25th May, 2007

LEGISLATIVE HISTORY

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